

Pa. - 9

Final Submission
10/4/26

BEFORE THE HON'BLE SOLE ARBITRATOR
SR. ADV. NITIN N. N. P. SARDESSAI
AT PANAJI - GOA

MR. VIKARM SHAH

...Claimant

Versus

MR. RIVA TRINDADE & ORS.

...Respondents

REPLY TO APPLICATION UNDER
SECTION 16 OF THE ARBITRATION AND
CONCILIATION ACT, 1996 FILED BY THE
RESPONDENT NO. 2

MAY IT PLEASE THIS HON'BLE TRIBUNAL

The Claimant above named most humbly begs to state and submit and
under.

1. At the outset, it is submitted that the present Application filed by the Respondent No. 2, under Section 16 of the Arbitration and Conciliation Act, 1996 is thoroughly misconceived, not maintainable, untenable both in law and on facts, and has been filed with the sole intention to someone or the other protract the present matter and evade arguments on the Application under Section 17 filed by the Claimant, which has been part heard. The Application under Reply, is liable to be dismissed in limine with exemplary and punitive costs to be awarded in favour of the Claimant.
2. It is respectfully submitted that the Application in question is nothing short of an abuse of the process, figment of belated afterthought, and a legal ingenuity, aimed to delay the present proceedings. The Application is mala fide and has been filed with the sole intent of derailing and delaying the present arbitral proceedings. defeating the very purpose of the alternate dispute resolution by medium of Arbitration proceedings.

3. It is a matter of record that the Respondents Nos. 1, 2 and 3 had admittedly filed their Statement of Defence on 07/03/2025 without raising any objection as to the jurisdiction of this Hon'ble Tribunal on the grounds now sought to be urged in terms of the present Application. The present plea is raised for the first time at this belated stage and is clearly barred under Section 16(2) of the Act, which mandates that a plea that the Arbitral Tribunal lacks jurisdiction ought to be raised not later than the submission of the Statement of Defence. The law on this issue is no longer res integra.

4. The Application filed by the Respondent Nos. 1 to 3, though styled as being filed by the Respondent No.2, is directly in teeth of the Judgment of the Hon'ble Supreme Court in *M/s. Vidhyawati Construction Company v. Union of India* reported (2025) 5 SCC 347, wherein it has categorically held that a jurisdictional objection not raised at the stage of filing of the Statement of Defence is deemed to have been waived and cannot be permitted to be raised at a belated stage.

5. It is submitted that conduct of Respondent No. 2 squarely attracts the doctrine of waiver and acquiescence. It is submitted that the Respondent No. 2, having participated in the present arbitral proceedings and having filed a detailed Statement of Defence on merits, cannot now be permitted to approbate and reprobate by raising a jurisdictional challenge at a belated stage. In fact, such conduct is impermissible in law and contrary to the Principles contained in Section 4 of the Arbitration and Conciliation Act, 1996 relating to waiver of right to object.

6. Without prejudice to the foregoing, it is respectfully submitted that the mala fides of the Application stand exposed in light of the Respondent No.2 having been a party and duly having been represented in the Joint Venture Agreement dated 25/04/2014 between PVM, i.e. the parties to the AOA and Kuval Projects Pvt. Ltd., by her duly constituted attorney, her late husband Mr. Pascoal Trinidad. It is therefore not open to the Respondent No.2 to contend to the contrary

or that this Hon'ble Tribunal lacks jurisdiction, which contention is wholly unsustainable and cannot be countenanced by this Hon'ble Tribunal. In fact, the AOA i.e. PVM Associates has been referred to in the said Agreement as a partnership, thereby, clearly demonstrating the intention of the parties and also novating the AOA in this regards.

7. It is respectfully submitted that the plea of the Respondent No. 2 is entirely premised on the assertion that Respondent No. 2 is not a signatory to the AOA, and that her alleged moiety share under the Regime of Communion of Assets cannot be bound by the said Agreement.

8. It is humbly submitted that such a contention is *ex facie* erroneous and contrary to settled legal principles governing binding of non-signatories. The Hon'ble Supreme Court in *Chloro Controls India Pvt. Ltd. v. Severn Trent Water Purification Inc.* reported in (2013) 1 SCC 641 has recognized that non-signatories may be bound by an arbitration agreement under the "group of companies" doctrine and

other principles such as composite transactions, commonality of subject matter, and direct relationship with the signatory party. This principle has been further elaborated and reaffirmed by the Constitution Bench of the Hon'ble Supreme Court in *Cox and Kings Ltd. v. SAP India Pvt. Ltd.* reported in 2023 SCC OnLine SC 1634, wherein it has been held that non-signatories can be referred to arbitration if they are directly involved in the performance of the contract, or where the circumstances demonstrate a clear intention to bind such parties.

9. It is respectfully submitted that the Articles of Association dated 01/04/2013 was entered into in furtherance of a commercial transaction concerning the suit properties, and the same cannot be conveniently disowned by Respondent No. 2 while continuing to retain benefits arising therefrom. In this context, a gainful reference can be had from the law laid down by the Hon'ble Bombay High Court in *Rashmi Mehra v. Eac Trading Ltd.* reported in 2018 SCC OnLine Bom 1502 has held that a party cannot avoid arbitration on derivative claims

merely by asserting lack of signature when the surrounding circumstances indicate participation, benefit, and connection with the transaction. Similarly, in *Ameet Lalchand Shah v. Rishabh Enterprises* reported in (2018) 15 SCC 678, the Hon'ble Supreme Court has held that where multiple agreements and parties are intrinsically interlinked in a composite transaction, even non-signatories can be referred to arbitration to avoid multiplicity of proceedings and conflicting decisions.

10. In the present case, the disputes raised by the Claimant arise out of a composite arrangement involving the suit properties, the Articles of Association, and the conduct of all Respondents acting in pursuance thereof. The adjudication of such disputes necessarily requires the presence of Respondent No. 2 before this Hon'ble Tribunal.

11. It is further submitted that permitting Respondent No. 2 to raise such a belated jurisdictional objection would only defeat the very

object of the Act, which is to ensure expeditious and efficient resolution of disputes.

12. The present Application is thus not only barred by limitation under Section 16(2) but is also hit by the principles of waiver, estoppel, and acquiescence. The same is devoid of merits and constitutes an abuse of the process of law.

13. In such circumstances, it is most respectfully prayed that this Hon'ble Tribunal be pleased to dismiss the Application filed by Respondent No. 2 with costs, and proceed with the adjudication of the present dispute on merits.

Date 10/04/2026
Place: Panaji – Goa

Advocate for the Claimant